

Constitution of the Student Government Association

(Revised September 2022)

Mission Statement

The mission of Furman Student Government Association (SGA) is to be a proactive governing body that represents Furman's diverse student population and contributes to the positive development of the university community. *We are students serving students.*

Values Statement:

As an organization, we recognize the importance of values such as transparency, credibility, integrity, and civic engagement in the Furman and Greenville communities. We seek to embody these values in our efforts to better both SGA and the Furman community.

Vision Statement

As an organization that represents the student body, SGA seeks to become a group that students understand and value. SGA will work collaboratively with the various entities of the university, including students, administrators, faculty, and trustees. SGA will propose solutions that address broad student problems while also performing the operational duties that allow it to function.

Article I. Name of Organization

The name of this organization will be the Student Government Association (SGA).

Article II. Membership

All students of Furman University who pay the student government fee are considered members of the student body, are citizens of this association, and are subject to this constitution.

Article III. Student Body Initiative and Referendum

Section 1. Student body vote

A. The student body will vote on any legislation brought before it at the request of at least one-third (1/3) of the total membership of the SGA

a. Any member of the SGA Council wishing to put a piece of legislation up for a student body vote may do so through a motion to put to referendum. If the legislation has not previously been read into new business, the motion to put to referendum shall be treated as a primary motion under Robert's Rules. If the legislation has been read into new business, it shall be treated as a subsidiary motion that takes precedence over all others. In both cases, the motion shall not be amendable. In both cases, it shall be debatable, but debate may not extend to the merits of the legislation itself.

B. Any legislation will be put to a student vote providing a petition signed by ten percent (10%) of the student body is received by the SGA President.

Section 2. Passage of legislation in student referendum

All legislation will be passed by a simple majority of those voting, provided at least twenty percent (20%) of the student body votes.

Section 3. Presentation of legislation

Any legislation may be presented to the SGA by any member of the student body for consideration by the SGA at any scheduled SGA meeting.

Article IV. The SGA

Section 1. Purpose

The SGA will be the legislative body of the Student Body.

Section 2. Membership

A. The voting membership of the SGA will include:

1. The Executive Board consisting of:
 - a. SGA Vice President
 - b. SGA Treasurer
 - c. SGA Secretary
 - d. SGA Academic Affairs Chair
2. Four class representatives per class

3. One (1) representative per SGA At-Large Organizations
4. One representative of international student population

B. The non-voting membership of the SGA will include:

1. The SGA President who may only vote in case of a tie in Council.
2. One (1) Parliamentarian who will be appointed by the SGA President and must be approved by a two-thirds (2/3) majority vote of the SGA Council.

Section III. Term of Office

The term of office for all members will run for the entire academic year. Upperclassmen and executive officer elections will take place in the spring term of the previous academic year. Those elected will meet with the current members until the end of the year, and will be sworn in at the last meeting. Prior to the start of their term, newly elected officers will meet at least twice with the current member in their position to discuss the duties of their role and undergo any necessary training. Their term will last until the end of the following academic year.

Section IV. Powers and Duties

- A. The SGA will represent the student body in all matters affecting student interest.
- B. The SGA will exercise general supervision over all student activities.
- C. The SGA will receive, ratify, and file constitutions of student organizations.
- D. The SGA will recommend to the proper university authorities any changes in the student activities fee, provided such a change has been approved by a two-thirds (2/3) majority vote among the various recipient organizations and activities of the Student Government Association.
- E. The SGA will enact and revise laws of the student body.

Section V. Meetings, Quorums, and Procedures

- A. The meetings of the SGA will be open to all members the student body.
- B. The student body officers may schedule up to two (2) mandatory SGA educational activities, which shall count as SGA meetings for the purposes of taking attendance. The student body officers must notify council members of the activity dates at least two weeks in advance. One of the two sessions may occur before members' term of office begins.

C. To refer legislation passed by the SGA to a vote of the student body, a majority of the SGA must sign a petition for referral within six (6) school days after the passage of said legislation.

D. The SGA will meet once each week during the academic year except during the first and last weeks of the semester. The SGA President, a majority of the student body officers, or a majority of the SGA may call an emergency meeting at an established time and place with at least twenty-four (24) hours notice to all members of the SGA.

E. The SGA may cancel a scheduled meeting by a three-fourths (3/4) majority vote of the Council one week in advance.

F. Robert's Rules of Order will be observed in all meetings of the SGA when not in conflict with the provisions of the constitution and by-laws.

G. A quorum of the SGA shall consist of two-thirds (2/3) of the voting membership of the SGA, and no business will be transacted without a quorum.

H. During the summer session by majority vote, Executive Council officers will have the power to make decisions and rule on behalf of the SGA.

I. Attendance

1. Members of the SGA are allowed no more than two (2) unexcused absences per semester from a scheduled SGA meeting and no more than two (2) unexcused absences per semester from a scheduled SGA office hour. Arriving late or leaving early counts as an absence. The Secretary of the SGA has the power to excuse absences.

2. Members of SGA committees are allowed no more than two (2) unexcused absences per semester from a scheduled SGA committee meeting. Arriving late or leaving early counts as an absence. If a member of SGA violates the attendance guidelines, then the member must meet with the Executive Council to review the absences. The Executive shall deem if the member is in good or poor standings with the council.

3. The SGA President will declare vacant the position of any member of the SGA who is in poor standing.

4. The Secretary shall post an absence report monthly for the council to see.

5. The SGA will keep an annual report of all its proceedings. A copy of this report will be kept in the SGA office and the archives of the library for information of all interested persons. The SGA secretary will be responsible for this report.

Section VI. Elections

A. Freshmen officers and representatives will be elected no later than six (6) weeks following the opening date of fall semester.

B. The current President will administer the following oath of office to all members of the SGA: "I _____ do solemnly swear that I will faithfully execute the duties of my office and will to the best of my ability uphold the constitution and laws of the Student Government Association."

C. Eligibility

1. In order for a candidate to be listed on the ballot, they must complete the candidate interest form.
2. Each candidate for the SGA office, exclusive of candidates for freshman offices must have an overall grade point average of not less than two (2.0) as determined by the registrar.
3. Candidates for office must plan to be enrolled in university classes held in Greenville for the entire term of office (with the exception of summer session).
4. Candidates running for the student body office of President must be rising juniors or seniors and meet one of the following qualifications:
 - one year experience on the council of the Student Government Association
 - one year experience as President of a University-recognized organization
 - two years' experience in a University-recognized leadership role (ex. Housing Staff, Orientation Staff, etc.)Candidates for all other student body offices must be rising sophomores, juniors, or seniors.
4. No member of SGA is allowed to be in the office of more than one position at one time. In accordance with this, no student is allowed to run for more than one office at a time during the election process.
5. Candidates for all offices must present a speech to their constituency to be eligible to run for an office.

D. Recall

1. Upon receipt of a recall petition signed by one-third (1/3) of the members of the student body or more than one half of the members of the SGA, the President or, if the President is being recalled, the Vice President will order the Elections Chair to hold a recall election within two (2) weeks
2. Upon receipt of a recall petition signed by two-thirds (2/3) of any representative's constituency, the SGA will declare vacant that representative's position.

E. Vacancy

1. A member of the SGA who chooses to resign will submit their resignation to the SGA President. An SGA President who chooses to resign will submit their resignation to the Vice President.
2. A vacancy in the office of the SGA President will be filled by the Vice President.
3. Any vacancy of an SGA position, except that of the president, will be filled by a special election held within three (3) weeks of the vacancy. If the SGA by 2/3 vote deems it to be impractical for a special election, then the officers of the class will appoint a replacement. A current elected member within the SGA will fill a vacant position on the Executive Council in an internal election by 2/3 vote if a special election is deemed impractical.

F. Procedure

1. The election calendar for the academic year shall be prepared by the Elections Chair in consultation with the SGA President. This calendar shall include the dates of all final and primary elections, speeches, information sessions, and petition due dates, and shall be submitted to the SGA for approval by simple majority vote.
2. All voting will be by secret ballot. The results will be announced within twenty-four (24) hours of the closing of the polls, which will remain open no less than twenty-four hours.

By-Laws of the Student Government Association

ARTICLE I. EXECUTIVE COUNCIL OFFICERS

Section 1. Powers and Duties of the Executive Council Officers

Subsection i. Office of the President

- A. The President will be the acknowledged head of the student body in all student affairs. The President will:
- B. Faithfully execute all provisions of the constitution and laws of the Student Government Association.
- C. Schedule, invite guests, set agenda and preside over weekly meetings.
- D. Appoint all committee chairs subject to a two-thirds (2/3) majority of the SGA that are not outlined in the Constitution or Bylaws.
- E. Serve as an ex-officio member on all committees of the SGA
- F. Appoint such officials and committees as will be needed to assist him/her/them in performance of their duties, upon approval by a two-thirds (2/3) majority vote of the SGA, and ensure that they report to the SGA in person at least once per semester.

- G. Appoint student members to faculty and , administrative, and trustee committees which provide for student members, subject to a two-thirds (2/3) majority approval by the SGA that they report to the SGA in person at least once per semester.
- H. Serve one year as an observer to the University Board of Trustees during term of service. (This provision is subject to changes in the Furman University Charter.)
- I. Attend all faculty and trustee meetings, as requested, and give reports on items with major implications to students.
- J. Appoint a Parliamentarian in consultation with the Executive Branch subject to a two-thirds (2/3) majority approval by the SGA

Subsection ii.

Office of the Vice President

- A. The Vice President will:
- B. Act in full capacity of the President in case of their absence and succeed them in case of vacancy.
- C. Coordinate the committee system of the SGA as follows:
 - 1. Serve as head chair over all Ad Hoc and standing committee chairs.
 - 2. Maintain power to call a meeting of any Ad Hoc and standing committee.
 - 3. Solicit reports as needed from committee chairs to ensure progress and adequate support.

4. Report to the Executive Board the status of Ad Hoc and standing committees as needed.

D. Maintain an updated list of all SGA-chartered student organizations and their leaders.

E. Present the constitutions of student organizations wishing to charter with the SGA.

Subsection iii.

Office of the Treasurer

The Treasurer will:

A. Maintain accurate and updated financial records of the SGA and all SGA-sponsored organizations, including expenses or new money funding.

B. Grant SGA-sponsored organizations' Presidents and Treasurers non-editing access to their respective organization's budget.

C. Regularly review funding requests in a timely fashion. (Expense requests must be submitted at least 1 week ***prior*** to the expenditure. New money requests must be submitted at least 1 month prior to the expenditure.)

D. Approve or deny funding requests in accordance with **financial guidelines:**

a. Domain of Purchases

i. SGA funds may only be used directly in line with a club's approved constitution.

b. Use of Purchased Items

i. Items purchased with SGA monies may not fall under the sole permanent ownership of

a member. *Excludes: Organization apparel and graduation cords.*

- ii. Raffle/Giveaway items may only be purchased if all students are eligible to receive the prize. *Note: Cash and gift cards are prohibited purchases.*
- iii. Items purchased with SGA monies may not be resold.
- iv. SGA funds will not be used to pay for staff appreciation items.
- c. Food Items and Events
 - i. SGA funds may be used to purchase food for events that are open to all students and at a maximum of \$20.00 per student.
 - ii. SGA funds may not be used for banquets or end-of-year/semester events.
- d. Travel Expenses
 - i. Student travel/lodging costs and conference registration fees may be covered.
 - ii. SGA funds may be used to reimburse food purchases up to \$60.00/day.
- e. Donations
 - i. SGA funds may not be directly or indirectly donated.

E. Ensure responsible use of the SGA credit card/funds:

- a. The SGA card may only be used for purchases approved with a completed expense request form. *SGA is not obligated to reimburse student organizations for purchases that were made without prior approval by means of an expense request form.*
- b. Student organizations are strictly prohibited from retaining the SGA credit card on the day of an event for unplanned purchases.

F. Maintain an open and transparent process for setting an operating budget, treating all groups/individuals fairly and without bias.

G. Prepare the annual budget based on a forecast of student government fees for the upcoming year, in collaboration with the Finance Committee.

- H. Present the annual budget to the SGA to be voted on for approval.
- I. Annually review spending guidelines and propose changes, as necessary.
- J. Communicate with student organization leaders regarding spending guidelines and budgeting.
- K. Understand school and club policies regarding financial accounts.
- L. Present monthly a report of the state of the Treasury.

Subsection iv.

Office of the Secretary

The Secretary will:

- A. Record, preserve, and present for inspection to any member of the student body, upon request and sufficient notice, all papers, proceedings, rolls of attendance, and other records of the SGA.
- B. Make available the minutes in a public forum.
- C. Keep record of weekly communications between the student body and the Class Secretaries.
- D. Maintain the SGA SyncDin and all social media platforms.

- E. Enforce attendance policy of Council meetings and office hours.
- F. Distribute Council minutes to the Freshman Class until a Freshman Class Secretary is elected.

Subsection v.

Office of the Parliamentarian

The Parliamentarian will:

- A. Know and enforce Robert's Rules of Order, Constitution and Bylaws for all Council meetings.
- B. Implement the service programs of the SGA and make periodic reports to the SGA on these programs.
- C. Count official votes, but serve as a non-voting member of the SGA.
- D. Educate and advise new Council members on procedural and SGA Constitutional and Bylaw matters.

Section 2.

Honorariums

- A. Executive Council Secretary, Vice President, and Academic Affairs Chair shall receive an honorarium of two thousand dollars (\$2,000) per year; the President and Treasurer shall receive an honorarium of three thousand dollars (\$3,000)

per year; and the Parliamentarian shall receive an honorarium of one thousand dollars (\$1,000) per year.

- B. No changes in the honorariums shall take effect until the Executive Board serving at the time of the approval of such a change has served the designated term.

ARTICLE II. CLASS REPRESENTATIVES

Section 1. Powers and Duties of the Class Representatives

Subsection i.

A. The four Class Representatives will collectively:

- a. Represent the interest of their class at the SGA meetings.
- b. Hold one class forum or event per semester.
- c. Each individual must serve on one SGA or University committee.
- d. Attend Council meetings weekly, present on updates.
- e. Communicate weekly to class.

ARTICLE III. AT-LARGE ORGANIZATION REPRESENTATIVES

Section 1. Selection of At-Large Organization Representatives

Organizations are appointed voting representatives on the SGA because they have:

1. Broad application to student life;
2. Diverse significance;
3. Application to current student interest;
4. Common interest with the SGA's Mission, Values and Vision Statement;
5. The ability to facilitate students serving students.

Section 2. The Powers and Duties of At-Large Organizations Representatives

Subsection i. The Residential Life Council, Religious Council, Campus Recreation, Student Diversity Council, and Furman University Student Activity Board Representatives will:

- A. Report to the SGA significant actions of their respective organization.
- B. Act as a liaison between their organization and the SGA.

ARTICLE IV. COMMITTEES

Section 1. Committee Members

- A. All SGA Council committees and committee meetings shall be open and observable to members of the student body.
- B. Committees consist of appointed members of the SGA Council as well as appointed members of the student body. All official members of the committee may vote, except the presiding officer serving as the chair, who may only vote in the cast of a tie. The SGA President and Vice President shall have the right to vote on actions of any committee on which they serve, unless they themselves are the chair of the committee.

Section 2. Committee Action

- A. A committee shall have the power to write legislation to be considered by the SGA Council. These shall be in the form of resolutions and motions.
- B. A committee shall have the power to call in representatives to speak and present on legislation. It may also send a copy of legislation to the organization or persons concerned, with the

request for an official report of their view on the legislation.

Section 3. Standing Committees

The Standing Committees of the SGA shall be the Student Organizations, Finance, and Public Relations Committees. New standing committees may be added only by formal amendment to this section of the Bylaws.

Subsection i. The Student Organizations Committee

The Student Operations Committee shall:

- A. Oversee all SGA groups and organizations.
- B. Review new group proposals before said groups present to Council.
- C. Identify **collaboration** opportunities between the SGA and SGA groups to further the SGA's Mission, Values, and Vision Statement.
- D. Recognize specific student needs and issues and take a leading role in working to address these needs and issues.
- E. Meet at least twice a month.
- F. Be chaired by the SGA Vice President.

Subsection ii. The Finance Committee

The Finance Committee shall:

- A. Follow and enforce all funding procedures and funding guidelines.
- B. Plan and attend budget hearings.
- C. Meet as needed under direction of the SGA Treasurer.

Subsection iii. The Public Relations Committee

The Public Relations Committee shall:

- A. Create publicity for the SGA and advertise SGA events and activities.
- B. Maintain all publicity avenues for the SGA.
- C. Be chaired by the SGA Secretary

Section 4. Ad Hoc Committees

Ad hoc committees shall:

- A. Be formed for action on a specific matter or a matter that does not otherwise fall within a standing committee.
- B. Continue year to year until its founding objective is completed.
- C. Be established or re-established by any Council member through a presentation of a motion during Council. The motion shall:
 - a. Include a purpose or intent.
 - b. Require immediate appointment of a chair and members by the chairperson or acting chairperson of Council.

ARTICLE V. STUDENT ORGANIZATIONS

Section 1. University Recognition

All student organizations are required to be chartered by the Office of Student Life. Additional requirements may exist for Religious, Greek, Sports and other specifically oriented organizations.

Section 2. Recognition by Student Government

- A. Student organizations that have been chartered by the Office of Student Life must submit the following for consideration of ratification:

1. A constitution.
 2. A list of chartering members, including at least ten (10) non-seniors.
 3. A faculty or staff sponsor.
- B. No student organization shall have a constitution or bylaws that conflict with the Constitution or Bylaws of the SGA or the rules and regulations of Furman University.
- C. Any constitution may be revoked by a two-thirds (2/3) majority vote of the Council when an organization becomes inactive, violates provisions of the charter, fails to execute the functions for which it was formed, or conducts its activities in a manner such as to bring discredit to the school or Student Body. Before the Council may vote on a revocation of an organization's constitution, the organization shall have the opportunity to appeal to the Council within two weeks after receiving written notification from the Council.
- D. The SGA grants authority to the Student Diversity Council, Religious Council and Campus Recreation to ratify group constitutions according to the Constitution and Bylaws of the SGA, the Constitution and Bylaws of their own organization, and the rules and regulations of Furman University as contained in the Helmsman. These organizations shall be required to notify the SGA of any action taken to ratify a group's constitution and shall be responsible to the Office of Student Life for ensuring that the ratified constitution is submitted promptly to the Office of Student Life.

Section 3. Registration of Student Organizations

- A. All student organizations shall register with the Office of Student Involvement and Inclusion and the SGA each year.
- B. Requested information will be given to officers of organizations at the beginning of spring term each year.
- C. Registration must occur by the beginning of budget hearings each year for a student organization to retain its charter.
- D. A group will become inactive if the group fails to register within one year of the registration date set by the Vice President.

ARTICLE VI. FUNDING OF STUDENT ORGANIZATIONS

Section 1. The Student Government Fee

The Student Government Fee The fee will be disbursed within the first month of each term according to the following percentages:

- . 36% SGA Council
- . 32% Furman University Student Activities Board
- . 28% in total to Club Sports, Religious Life and Student Diversity councils (see detail below on split between councils)
- . 2% Residential Life Council
- . 2% Campus Recreation

Although the SGA grants these groups significant autonomy in their use and dispersal of student body funds, the SGA Council retains oversight authority over 100% of all monies gathered from the student government fee. The 28% distributed to the three councils will be divided based on the number of active organizations each council has, as a percentage of total active council organizations. The number of active organizations will be determined in the Spring for the following academic year.

Section 2. Funding Procedures

- A. Only student organizations with Constitutions ratified by the SGA Council, or those with status

as provided for in the Constitution and Bylaws of the SGA, may petition the SGA Finance committee for funds during the annual budget hearing process. After the beginning of the fiscal year, the current council may fund any request it deems worthy subject to funding guidelines.

B. Student organizations shall submit a budget request for the next fiscal year to the Finance Committee of SGA by the deadline announced by the Finance Committee each year. The President and Treasurer, if appropriate, or the recognized organizational leader of the organization must sign the budget request. The Finance Committee is responsible for providing each organization with a budget request form.

C. The Business Office of Furman University will automatically disburse the listed allotment from the student government fee to FUSAB, Religious Council, Residential Life Council, Intramural Sports Council, Student Diversity Council and Recreational Support Council through interdepartmental means.

1. These organizations shall use this allotment to support their activities and the activities of their member organizations pursuant with all rules and regulations outlined in the SGA Bylaws.

2. These organizations shall provide the SGA Council with a budget report by the fourth regular SGA Council meeting of each term to report the usage and appropriation of money. Funding is subject to review by the SGA Council.

3. These organizations may maintain separate funding guidelines for themselves and their constituent organizations, if any, provided the SGA Council is notified of their funding principles at the start of an academic year. Any member of the SGA Finance Committee may object to a specific funding provision by these organizations, and the SGA Finance Committee may overturn an organization's funding guidelines in part or entirety by a simple majority vote appealable to the full SGA Council.

4. If one or more of these organizations maintain no separate constitutional or bylaw provision on funding guidelines, then that organization is subject by default to the funding guidelines enumerated in SGA Bylaws.

5. In case of extenuating circumstances wherein a group's budget has been exhausted and the At-Large organization that it falls under lacks the funds to fulfill a new money request, additional funds may be supplied from SGA with the completion of a New Money Request from the At-Large organization's president or treasurer. The request will be voted upon by the full SGA Council, and may be funded fully, in part, or denied depending on the merit of the request, use of budgeted funds, and present ability of the Council to allocate new money.

Section 3. Funding Guidelines

Subsection i. Mission Statement

It is the charge of the SGA Council and Finance Committee to be responsible stewards of student money, to treat all groups and individuals fairly and without bias, to maintain an open and transparent process for setting an operating budget and monitoring group spending, and to generally refrain from dilatory or obstructive action or consideration beyond stewardship or fairness concerns.

Subsection ii. General Funding Principles

The following spending guidelines apply to all funds allocated by the SGA Council in the fiscal year:

1. All SGA monies shall be used for Furman students.
2. Funding will be approved only for groups with a constitution approved by the SGA and a line-item budget approved by the Finance Committee.
3. Events and activities funded by the SGA should be open to all Furman students, whose attendance or participation at such should take precedence over that of non-students.
4. Student groups are encouraged to seek additional funding from sources other than the SGA and will never be penalized for doing so in any funding allocation process.

Subsection iii. Submission and Presentations of Budgets

1. The SGA Treasurer shall set the date for budgets to be submitted to the Finance Committee for review.
2. Budget hearings for student groups will be conducted at the discretion of the SGA Treasurer prior to completion of the final budget.
3. Finalized budgets will be distributed to student groups before the preceding fiscal year.

Subsection iv.

Financial Forms and Documents

1. No payment will be made unless complete documentation of the expense is provided in the request. This may be a receipt, invoice, contract, or some other form as approved by the SGA Treasurer.
2. Payments will be made, when possible, by reimbursement or direct payment to the vendor. For purchases under \$1000, the SGA credit card may be used given prior notification and availability.
3. Checks may be requested, either for reimbursement or direct payment, by submission of a completed Check Request form.
4. The SGA credit card may be requested by submission of a completed Credit Card Request form.
5. A group may reallocate money among line-items by submission of a completed Reallocation Request form. Reallocations above \$1000 will be voted on by the Finance Committee; above \$2000 by the full SGA Council.
5. After a group's budget has been exhausted, additional funds may be requested by submission of a completed New Money Request form. The request will be voted upon by the Finance Committee if the amount requested is \$1000 or less, but by the full SGA Council if the amount is over \$1000. It may be funded fully, in part, or denied depending on the merit of the request, use of budgeted funds, and present ability of the Council to allocate new money.
6. All spending is subject to review under the separate Financial Guidelines document by the Finance Committee. Lines items and individual expenses that are not in accordance with the guidelines may be approved with a unanimous vote of the Finance Committee or a simple majority vote of the full SGA council.

Subsection v.

Speakers and Contracts

1. Current Furman students may not receive payment (direct or indirect) with SGA funds for any service or commitment, other than as reimbursement for approved, budgeted expenses.
2. Direct payment to speakers, guests, venues, and other entities shall be agreed upon and signed and submitted contract prior to the date of the event.

Subsection vi.

Violations of the Bylaws and Spending Guidelines

1. Unapproved purchases, including those made with the SGA credit card, will become the personal responsibility of the individual who made the purchase. Failure to pay can result in a referral to the Office of Student Life for disciplinary processing.
2. Any purchase that is not included in a group's line-item budget will not be funded or, if already made, reimbursed. New money requests received for non-budgeted items after the costs have been incurred will not be eligible for reimbursement.
3. If other violations of the spending guidelines occur, disciplinary action may be taken at the discretion of the Finance Committee.

vii.

Subsection

Powers of the Council and Finance Committee

1. Under special or extraordinary circumstances, exceptions to any of the above spending rules can be made with a majority vote of the SGA Finance Committee and two-thirds (2/3) vote of the SGA Council.
2. The SGA Finance Committee reserves the right to adjudicate upon improper use of student money not specifically restricted here, as well as the right to amend or expand the spending guidelines as necessary.

Subsection viii.

Review of Spending Guidelines

1. Each new Finance Committee shall be charged with the task of reviewing the spending guidelines to ensure their compliance with the best standards and current practices of the SGA.
2. Amendments to the Financial Guidelines document may be made with a simple majority of the full SGA council.

**ARTICLE
VII.**

ELECTIONS

Section 1.

Appointment of the Elections Chair

- A. The SGA President shall appoint, pending a two-thirds (2/3) approval of Council, one Elections Chair at the beginning of each school year.
- B. No member of the SGA Council who is otherwise eligible to run for office again may serve as the Elections Chair.

Section 2.

Purpose of the Elections Chair

The purpose of the Elections Chair shall be to supervise all SGA elections and voting procedures, including but not limited to officer elections, referendums, homecoming elections and election campaigns. The Elections Chair shall also be to supervise the election of

representatives or officers of any organization requesting for valid reason the assistance of the Elections Chair.

Section 3. Responsibilities of the Elections Chair

The Elections Chair shall:

- A. Be in charge of publicity for elections and make all arrangements for the proper conduct of these elections. Senior members of SGA may assist with publicity at the request of the Elections Chair. This shall include responsibility for seeing that all duly-nominated candidates and all write-in candidates are qualified under the provisions of the Constitution and Bylaws of the SGA. The responsibility shall also include distribution of information to all candidates concerning the method and procedure of campaign and election.
- B. Maintain the following conditions and equipment at polling areas and times:
 - 1. Proper Supervision. The Elections Chair shall supervise the online voting process and certify the results of the election.
 - 2. Improperly marked ballots shall be declared void and not be counted.
 - 3. Publicity. The Elections Chair shall publicize elections as much as reasonably possible in conjunction with the Public Relations Committee.

4. Polls must remain open for no less than twenty-four (24) hours.
- C. Remain completely impartial when maintaining a poll.
 - D. Release complete returns to all campus news media and to all candidates in all elections within twenty-four (24) hours after the closing of the polls.
 - E. Keep records of all returns that shall be available to all student body members upon request. These records shall be kept for four years following each election.
 - F. Attend Council two weeks prior to every election to review elections procedures and maintain communication with the Executive Board about elections statuses.

Section 4.

Nomination of Candidates

- A. Each candidate for any student government office shall personally sign and file with the OSII an official petition to qualify as a candidate. Petitions for candidates for student government shall bear the signature of twenty-five (25) members of the respective class for class officers or twenty-five (25) members of the student body for student body officers.

- B. The Elections Chair shall be responsible for submitting the names of the qualified nominees to be posted within forty-eight (48) hours after their petitions have been filed and must be submitted to all available campus media.
- C. Any candidate may withdraw from a race by notifying the Elections Chair in writing prior to the election. If a candidate withdraws and wishes to reenter the same race, he/she must file a new petition before the time at which all petitions are due. The time at which he or she re-files will determine the position of his or her name on the ballot.
- D. There shall be a “write-in” category for all positions in all elections. Should a write-in candidate win the election, the Office of Student Activities will confirm his or her eligibility to serve. Should the candidate be ineligible, the first runner-up will serve in the position.

Section 5.

Campaign Procedures

- A. Campaigning shall begin after petitions are due but not before two weeks prior to the final election.
- B. Candidates for all student government offices must address the respective students they will represent in a speech in order to present their ideas. If a candidate cannot attend the presentation of speeches, he or she must submit a videotaped speech or have a representative speak on his or her behalf at that time to be eligible for office. The Elections Chair must be notified of the

representative at least forty-eight (48) hours before speeches are to occur. These speeches shall be held during the week of the primary election. Qualified write-in candidates who have announced their candidacy prior to the time of the speeches shall also be allowed to take part in these same speeches.

C. There shall be no campaigning at the polls. Violations shall result in the disqualification of the candidate by the Elections Chair. This applies to all elections and referenda.

D. No candidate for a position in the SGA shall spend over a maximum amount set by the Elections Board in a campaign. Each candidate shall keep a record of all campaign expenses and submit it to the co-chairs of Elections Board within three days after the final elections. The Elections Chair shall hear, investigate, and decide all cases concerning this by law.

Section 6.

Election Procedures

A. Each student will vote for one candidate for each office in any particular election.

B. If there are more than two candidates running for a position, a primary election will occur to narrow the field to the final two candidates. In primary elections, each voter may vote for as many candidates as there are places in the final election.

- C. The winner(s) of the election will be determined by the plurality of votes.
- D. Any office left vacant after an election by a failure of students to run for office will be nominated by the president of the affected SGA Council and approved by a two-thirds (2/3) majority vote of that SGA Council.
- E. A record should be taken of the number of voters who come to the polls.
- F. The whole student body shall elect Executive Board Officers. Other officers shall be elected by their respective class.
- G. An election may be declared void by the Elections Chair if:
 - a. The number of votes among all candidates for an office exceeds the number of voters participating in the election, or
 - b. The number of voters participating in the election exceeds the number of votes among all candidates.
- H. Any student who wishes to contest an election must submit his or her protest in writing to the Elections Chair within five (5) business days after the election returns are announced. The chairman of the Student Judiciary and Arbitration Board shall convene the court within one (1) week to rule on the protest. If the contestation is found to be valid, the Student Judiciary and Arbitration Board shall declare the election void and shall order that

a new election be held. The Elections Board shall keep all ballots until the time for contestation has expired or until any contestation has been resolved.

- I. The Elections Chair shall conduct all referenda of the student body.
- J. All elections to fill vacancies in the SGA offices shall be held within three weeks of the declared vacancy.
- K. Any vacancy that is declared by the SGA President within three (3) weeks before the scheduled election for that office may be left vacant until the election or temporarily filled through a nomination by the president and support of two-thirds (2/3) of Council.
- L. Students shall vote with their anticipated graduating class regardless of CLP status or credit hours.

Section 7.

Eligibility

Any SGA Council member who violates the attendance policies with at least three (3) unexcused absences from scheduled SGA meetings or with at least (3) three unexcused absences from scheduled SGA office hours in his or her term is not eligible to serve on the next SGA Council. Any individual who plans to study away during

his or her prospective term of office is not eligible to run or serve as a member of SGA.

ARTICLE VIII.

OVERSIGHT

If it is deemed by the SGA Council that any of the bodies created in the Constitution or Bylaws of the SGA no longer fulfills its stated purpose, then it may decide by a three-fourths (3/4) majority vote to dissolve that body. If this occurs, the powers and duties of that body will be returned to the Council until it determines the best way to correct the problem through proper legislation.

ARTICLE IX.

AVAILABILITY

- A. All members of the bodies created by the SGA Constitution and the Bylaws shall receive a copy of both documents upon taking office.
- B. The SGA Constitution and Bylaws shall be made readily available to all the interested students and members of the Furman community.
- C. Any changes in the Bylaws approved by the Council should be made available to all members of the Furman community and campus media within forty-eight (48) hours of its passage.

ARTICLE X. AMENDMENTS

Section 1. Formal Amendment

Specific amendments to this document shall be made by two-thirds (2/3) majority vote of the SGA Council. All amendments must be given two readings before council, and must give two weeks previous notice before adoption. Failure to adhere to these procedures will immediately cancel any amendment regardless of the margin on passage.

Section 2. Informal Amendment

Any change in the name of an organization mentioned in this document shall be ordinarily amended in this document. Deletion or insertion of articles, sections, or subsections which render textual references within one section to another section obsolete, or render section orderings obsolete, may also be ordinarily amended. In no case shall an informal amendment alter in any way the meaning, intent, or position of any provision in this document. The Parliamentarian, acting only at the request of the Constitution Committee, shall be empowered to enact such informal amendments. All such amendments must be reported immediately to the SGA Council, and may be converted immediately to a formal amendment by the objection of any member of SGA for one month following the announcement of an informal amendment. Amendments made under this provision which do not specifically fall under these stipulated categories or alter the meaning, intent, or position of any provision in this document shall be cause for immediate dismissal of the Parliamentarian without possibility for reappointment.

